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CASE #	CASE NAME	HEARING NAME
CVRI2600663	VASQUEZ vs MERCEDES-BENZ USA, LLC	MOTION PURSUANT TO CODE CIV. PROC § 473(B) FOR RELIEF FOR FAILURE TO FILE AN OPPOSITION TO DEFENDANT'S DEMURRER TO COMPLAINT

Tentative Ruling:

In the court's order filed June 18, 2026, Plaintiff's motion for relief pursuant to C.C.P. section 473, subdivision (b), for failure to file an opposition to Defendant's demurrer to complaint was continued to July 17, 2026, and the hearing on June 23, 2026 re: dismissal pursuant to demurrer sustained without leave to amend was vacated.

Code of Civil Procedure section 473, subdivision (b), provides in relevant part: "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted[.]" (Code Civ. Proc., § 473, subd. (b).) No proposed opposition, as required under section 473, subdivision (b), was submitted with this motion.

The hearing on the motion for relief pursuant to Code of Civil Procedure section 473, subdivision (b), for failure to file an opposition to defendant's demurrer, is continued to August 4, 2026, at 8:30 a.m., to allow Plaintiff to file a proposed pleading, i.e. its proposed opposition.

If a timely request for oral argument is made by no later than 4:30 p.m. on July 16, 2026, oral argument will be heard on July 17, 2026 at 10:00 a.m. (not 8:30 a.m.).